REQUEST TO THE SENTENCING COURT TO TRANSMIT OR CORRECT A CPL Sec. 160.55 SEALING NOTICE

TO: The clerk of the New York court that sentenced you in this case
Exact office and postal address, confirmed with that office:
.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST TO TRANSMIT OR CORRECT A SEALING NOTICE UNDER CPL Sec. 160.55

A. WHY I AM WRITING, AND WHAT THE COMMITTED RECORD ESTABLISHES

The controlling committed legal decision records the mechanism as follows. CPL Sec. 160.55 provides automatic partial sealing when a criminal action terminates in a qualifying violation or traffic-infraction conviction, unless the prosecutor or court timely establishes that the interests of justice require otherwise.

It records what the participant does in the ordinary case: "For a post-November 1, 1991 qualifying disposition, the participant ordinarily files nothing. The clerk notifies DCJS and appropriate law-enforcement agencies."

It records the workflow this request belongs to: expected automatic partial seal; obtain certificate of disposition; check official criminal-history result; ask the sentencing court to transmit or correct the sealing notice; send certified disposition to DCJS for correction; motion or counsel if the court previously entered an interests-of-justice nonsealing order.

This page is the fourth step of that workflow. It is not a petition for sealing, because the committed decision records that no initial petition arises in an ordinary modern case.

B. MY MATTER

[C1 - case this request is about] Which case is this about? Give the court, the docket number and the date the case ended.
.....
.....

[C2 - recorded outcome of the case] How did the case end? The route this request belongs to is for a case that ended in a non-criminal violation or a traffic-infraction conviction.
.....
.....

[C3 - what the criminal-history result showed] What did the official criminal-history result you obtained actually show, and on what date did you obtain it?
.....
.....

[C4 - what is being asked of the court] What are you asking the court to transmit or correct?
.....
.....

C. WHAT I AM ASKING FOR

I am asking the court to transmit the sealing notice this case should have produced, or to correct it if it was transmitted wrongly. I enclose my certificate of disposition. If the court has previously entered an order that this case not be sealed in the interests of justice, please tell me, because the committed guidance I am working from says that changes what I must do.

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally. Nothing on this page is signed or dated for them.)

WHAT CPL Sec. 160.55 DOES, WHO DOES IT, AND WHAT IT DOES NOT REACH

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

NEW YORK CPL Sec. 160.55: AUTOMATIC PARTIAL SEALING, AND WHAT TO DO WHEN IT HAS NOT SHOWN UP

WHAT THIS ROUTE IS, AND WHO RUNS IT

THE PARTICIPANT ORDINARILY FILES NOTHING. The controlling committed legal decision says it in terms: "For a post-November 1, 1991 qualifying disposition, the participant ordinarily files nothing. The clerk notifies DCJS and appropriate law-enforcement agencies."

CPL Sec. 160.55 provides automatic partial sealing when a criminal action terminates in a qualifying violation or traffic-infraction conviction, unless the prosecutor or court timely establishes that the interests of justice require otherwise.

WHAT THE SEAL REACHES, AND WHAT IT LEAVES. The committed decision lists what the partial seal reaches: fingerprints and palmprints; booking photographs; DCJS records; police records; and prosecutor records.

AND WHAT IT DOES NOT. It does not seal the court file. Current New York Courts guidance and appellate authority expressly distinguish Sec. 160.55 from the full court-record sealing language in Sec. 160.50.

The consequence the committed decision draws is one a participant needs before they start: a qualifying violation may disappear from common DCJS-based criminal-history results while the courthouse file remains publicly inspectable.

Who runs it: The court and the agencies. The committed decision records that the clerk notifies DCJS and the appropriate law-enforcement agencies. Nothing in the ordinary case is initiated by the participant.

WHAT YOU DO

- Obtain your certificate of disposition. That is step two of the committed workflow, and everything after it depends on it.
- Check your official criminal-history result. That is step three, and it is how you find out whether the seal actually happened.
- If it did not, ask the sentencing court to transmit or correct the sealing notice - the request page in this packet is that step.
- Send your certified disposition to DCJS for correction. That is the next step in the committed workflow.
- Check the criminal-history result again. That is how you know whether it worked.

WHAT YOU DO NOT DO

- Do not file a sealing petition as your first step. The committed decision records: INITIAL PETITION: NONE FOR ORDINARY MODERN CASE. Filing one asks a court to order what the statute already did at disposition.
- Do not expect the courthouse file to close. The committed decision records that Sec. 160.55 does not seal the court file, and expressly distinguishes it from Sec. 160.50.
- Do not treat Clean Slate as part of this. The committed decision records that CPL Sec. 160.57 Clean Slate is separate, and warns against promising that ordinary Sec. 160.55 violations will receive full court-file sealing through Sec. 160.55.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Nothing in the ordinary Sec. 160.55 route is a participant filing, so no filing fee arises from it. Two things you may have to pay for are not filing fees: the certificate of disposition, and the criminal-history result. No committed record this packet binds states what either costs. The offices that answer are the clerk of the court that sentenced you, for the certificate, and the New York State Division of Criminal Justice Services, for the criminal-history result.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

Nothing is served, because in the ordinary case nothing is filed. The committed decision records that the CLERK notifies DCJS and the appropriate law-enforcement agencies. The request page in this packet is a letter to the sentencing court, not a pleading served on an opposing party.

WHEN TO STOP AND GET HELP INSTEAD

- the court previously entered an INTERESTS-OF-JUSTICE NONSEALING ORDER - the committed decision records that this is the point at which the route becomes a motion, or counsel;
- the case is a pre-November 1, 1991 qualifying case, which the committed decision records may require a motion under the statute's legacy branch;
- the matter is a DWAI, which engages the separate CPL Sec. 160.57(1)(a) three-year rule as well;
- what you actually need is the courthouse file closed, which the committed decision records that Sec. 160.55 does not do;
- any immigration question is involved.

WHERE TO GO WHEN SELF-HELP STOPS

For the criminal-history result, the New York State Division of Criminal Justice Services is the office named in the committed workflow. For a nonsealing order, a legacy pre-1991 case, or a DWAI, the committed decision routes the matter to a motion or to counsel.